

## Tentative Rulings for June 9, 2026 Department M205

**To request oral argument, you must notify  
Judicial Secretary Kari Gates at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                  | HEARING NAME               |
|-------------|----------------------------|----------------------------|
| CVME2502826 | CAPITAL ONE, N.A. VS TOBAR | MOTION TO VACATE DISMISSAL |

**Tentative Ruling:** Motion unopposed. Motion GRANTED. Court to sign the proposed judgment.

2.

| CASE #      | CASE NAME                         | HEARING NAME                                                |
|-------------|-----------------------------------|-------------------------------------------------------------|
| CVME2511921 | MARINER FINANCE, LLC VS ALEXANDER | MOTION FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS |

**Tentative Ruling:** Motion GRANTED.

1. . Authorizing Plaintiff to serve Defendant by leaving copies of the summons and complaint with Pamela Watkins at 1986 Manchester Court, San Jacinto, California 92582, informing Ms. Watkins of the contents thereof, and thereafter mailing copies of the summons and complaint by first-class mail, postage prepaid, to Defendant at 1986 Manchester Court, San Jacinto, California 92582;
2. . Ordering that service by the authorized alternative method shall be deemed complete ten (10) days after mailing;
3. Directing Plaintiff to file proof of such alternative service with this Court within fifteen (15) days after service is deemed complete; and
4. Ordering the Defendant to update her address with the court.

Plaintiff to submit an order consistent with this' court's ruling.

3.

| CASE #      | CASE NAME       | HEARING NAME |
|-------------|-----------------|--------------|
| CVME2600158 | ZAHLEH VS HICKS | DEMURRER     |

**Tentative Ruling:** No opposition. No amended complaint filed by Plaintiff.

Demurrer sustained as to counts 2, 3, and 4 of the Plaintiff's complaint w/o leave to amend the complaint. Counts 1 and 5 remain: Breach of Contract and Conversion.

Defendant to file an Answer within 10 days of the notice of this ruling.

Defendant to give notice.

4.

| CASE #      | CASE NAME       | HEARING NAME     |
|-------------|-----------------|------------------|
| CVME2600158 | ZAHLEH VS HICKS | MOTION TO STRIKE |

**Tentative Ruling:** No opposition. No amended complaint filed by the Plaintiff.

Motion to strike GRANTED as to counts 2, 3, and 4.

Defendant to give notice.

5.

| CASE #      | CASE NAME                       | HEARING NAME               |
|-------------|---------------------------------|----------------------------|
| CVSW2404125 | BANK OF AMERICA N.A.<br>VS ZHAO | MOTION TO VACATE DISMISSAL |

**Tentative Ruling:** No opposition. Motion GRANTED.

It is ordered: that the dismissal as to XIAOFENG ZHAO entered on August 26, 2024 be set aside and vacated, and judgment entered in favor of Plaintiff Bank of America, N.A., and against Defendant XIAOFENG ZHAO, in the principal sum of \$400.00, and court costs in the sum of \$643.61 for a total judgment of \$1,043.61.

Court to sign the proposed order and the proposed judgment.